

The Andhra Pradesh Fire Service (Amendment) Act, 2006

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State of Andhra Pradesh - Act

The Andhra Pradesh Fire Service (Amendment) Act, 2006

ANDHRA PRADESH

India

The Andhra Pradesh Fire Service (Amendment) Act, 2006

Act 21 of 2006

Published on 13 April 2006

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The Andhra Pradesh Fire Service (Amendment) Act, 2006

Act

No. 21 of 2006

Statement of Objects and Reasons: - In terms of Section 2(h) of the Andhra Pradesh Fire Service Act. 1999 high rise building means, 'a building of the height of 15 meters; or more from the surface level of land contiguous to such building'. A No Objection Certificate is required from Fire Service Department for all such buildings from the date of implementation of the provisions of the Act, 1999 dated 1-2-2001.

However, in terms of the prevailing Building Bye-laws which were issued by the Municipal Administration Department prior to 1999 under various provisions of A.P. Urban Areas Development Act, 1975 and the Hyderabad Municipal Corporation Act, 1955, building with slit + 5 floors of 18 meters height are exempted from obtaining the prior No Objection Certificate from the Fire Service Department. The said provision is mandate under the provision of Municipal

multi-stories building laws to obtain No Objection Certificate from the Fire Service Department.

As there is an increasing demand for housing and attendant facilities from the public which is largely met by private sector apartment complexes (18 Meters height). The magnitude of such residential complexes in all major cities of the State are stupendous.

In view of the different provisions of the Andhra Pradesh Fire Service Act, 1999 and the prevailing Building Bye-laws issued under the provisions of the A.P. Urban Areas Development Act, 1975 and the Hyderabad Municipal Corporation Act, 1955, the Height of 15 Meters appears to be on the lower side and height of 18 meters is reasonable. In order to avoid the discrepancy in respect of the high rise buildings and to resolve the dichotomy between Municipal Building Bye-laws and A.P. Fire Service Act, 1999 it has been decided to increase the height of building for residential purpose from 15 meters to 18 meters, the building constructed for commercial and business purposes more than 15 meters and buildings of public congregation like schools, cinema halls, function halls, religious places, which are more than 500 Sq. Meters in plot area or 6 meters and above in height in respect of obtaining "No Objection Certificate" for multi storied complexes form Fire Service Department by was amending section 2 (h) and section 13 of the A.P. Fire Service Act, 1999 suitably with retrospective effect from the 1st day of February, 2001.

2. Appended to L.A. Bill No. 10 of 2006.

Published in Andhra Pradesh Gazette Part IV-B, Extraordinary No. 24, dated 13-4-2006.

The following Act of the Andhra Pradesh Legislative Assembly received the assent of the Governor on the 12th April, 2006 and the said assent is hereby first published on the 13th April, 2006 in the Andhra Pradesh Gazette for general information

An Act further to Amend the Andhra Pradesh Fire Service Act, 1999.

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Fifty-seventh Year of the Republic of India as follows:

1.

Short title and commencement:

(1)

This Act may be called the Andhra Pradesh Fire Service (Amendment) Act, 2006.

(2)

It shall be deemed to have come into force on the 1st day of February, 2001.

2.

Amendment of Section 2:

- In the Andhra Pradesh Fire Service Act, 1999 (Act 15 of 1999), (hereinafter referred to as the principal Act), in Section 2;

(i)

in clause (h), for the expression "15 meters" the expression "18 meters" shall be substituted;

(ii)

in clause (j), for the expression "the National Building Code of India, 1997" the expression "the National Building Code of India as amended from time to time" shall be substituted.

3.

Amendment of Section 13:

- In Section 13 of the principal Act,-

(i)

for sub section (1), the following shall be substituted namely:-

"(1) Any person proposing to construct a building of more than 15 meters height for commercial/business purpose, 18 meters and above height for residential purpose, and buildings of public congregation like schools, cinema halls, function halls, religious places, which are more than 500 Sq. Meter in plot area or 6 meters and above in height shall apply to the Director General or any member of the service duly authorised by him in this behalf, before submission of such building plans to the authority or officer competent to approve the same under the relevant law, for the time being in force, for a no objection certificate along with such fee as may be prescribed".

(ii)

in sub-section (2), for the expression "the National Building Code of India, 1997", the expression "the National Building Code of India as amended from time to time" shall be substituted.

4.

Repeal of Ordinance 3 of 2006:

- The Andhra Pradesh Fire Service (Amendment) Ordinance, 2006 is hereby repealed.

Notifications

1. Report of High Power Committee constituted vide G.O.Ms.No.45 MA dated 04.02.2006 on fire protection and fire safety measures required to be taken in existing buildings - Recommendations Accepted

[GO.Ms.No.154, Municipal Administration & Urban Development (MI) Department Dated: 13.03.2007]

Read the following:-

1. G.O.Ms.No.45 MA & UD Department t. (M1) Department t. dated.04.02.2006.

2. Report submitted by the High Power Committee in December 2006.

3. High Court Orders in W.P.No.26365/05, dated.05.01.2007.

ORDER:

In the GO. 1st read above, in pursuance of the orders passed by the Hon'ble High Court in W.P.No.26365 of 2005 Government have constituted a High Power Committee under the Chairmanship of Secretary Municipal Administration and Urban Development Department with Director General, Fire Services Department, Vice-Chairman, Hyderabad Urban Development Authority, Commissioner, Municipal Corporation of Hyderabad, representatives from JNTU and National Academy of Construction and other experts as members to go into all aspects of buildings constructed (multistoried and otherwise) without obtaining NOC wherever required and in violation of various statutory provisions and make comprehensive suggestions for taking remedial steps.

2. In the reference 2nd read above, the High Power Committee has submitted their report. The report submitted by the High Power Committee has been examined in detail keeping in view the orders of the Hon'ble High Court issued in the reference 3rd read above. After careful consideration of the matter, Government have accepted the recommendations of the High Power Committee in 'toto'. The recommendations of the High Power Committee are annexed to this GO.

3. The Vice-Chairman, Hyderabad Urban Development Authority, Commissioner, Municipal Corporation of Hyderabad, Managing Director, HMWSSB, Managing Director, AP TRANSCO, Director General, Fire Services Department, are requested to take immediate action for implementation of the recommendations given in the annexure of this G.O and also requested to initiate necessary proposals for amending the relevant Laws wherever required.

Annexure to G.O.Ms.No.154, MA&UD(M1) Department dated 13-3-2007.

Recommendations of the High Power Committee constituted vide G.O.Ms. No. 45 MA dated 4-2-2006 on Fire Safety Measures Required to be Taken in Existing Buildings

The High Power Committee after examining the suggestions given by the various Sub-Committees, interactions with the various stake-holders, and the suggestions of the Fire Department recommend the following:

(A)

Remedial Measures for Existing Buildings to Ensure Reasonable Fire Safety:

The High Power Committee recommends the following mandatory fire safety measures in existing buildings for different occupancies and categories, i.e.,

(i)

All buildings of 15 metres and above in height

(ii)

Non-Residential buildings of 500 Sq. metres and above in area irrespective of height.

(iii)

Assembly and Educational buildings of 6 metres and above in height.

Advice of fire engineer may be obtained.especially in case of high rise buildings and premises involving large public congregation.

• Items marked as " * " may not be insisted in case Apartment Complexes of height above 15 m and below 18 metres , schools and other buildings where the floor area on each floor is less than 500 sq m and height is below 15m.

Fire safety Measure

Recommendations

1

2

(I) Means of Access

(1) Provide one entry and one exit with a width of minimum 4.50 meters with head clearance of 5.00 meters by removing cables, wires, arches, etc., (Refer clause 3.4.6.1 (d), Part 4, National Building Code of India) to ensure access to the fire vehicles.

(2) Provide facility for external access by Firemen to upper floors through conspicuously marked openable, windows in closed balconies and panels in glass facade, etc., for facilitating rescue and Fire Fighting purposes.

(II) Open Space

(*1) Providing 6 Meters Levelled, Metalled, access space (open to sky) by removing obstructions like Fixtures, Structures, Parking, Booths, Cabins, Generators, etc., to ensure movement of the fire vehicles around the building

(2) In case the above is impossible in the existing premises, provide removable partition in place of masonry compound wall for enabling joint access space of 6 meters all round the building with a turning radius of 9 meters at corners. (Refer NBC Part 2 clause 5.1 & 7.6, Part-3 clause 4.6 and Part 4 - clause 3.4.6).

1. Added by G.O. Ms. No. 246, MA & UD (M) Department ., dated 19-3-2008.[2A) In case of existing buildings where it is not feasible to provide for all round open space under sub-clauses

(1) and (2) of Clause, II, the builder/Building owner shall provide additional fire safety measures and install additional equipment as stipulated by the Fire and Emergency Services Department, in the sides having setback deficiencies.]

(*3) Providing drainage/manhole/water tank covers with adequate strength to bear the weight of Fire Vehicle i.e., 25 tons.

(4) "No-Parking" Rule shall be strictly enforced in the 6 Meters access space for Fire Vehicles.

(III) Means of Escape

(1) Providing External Staircase (minimum One Number.) with 1.25 meters width constructed either with RCC / Fire protected M.S (Refer clause 4.11, Part 4 of National Building Code of India).

(2) In case the above is impossible in the existing Premises, provide horizontal emergency exit through adjacent buildings via suitable bridges preferably at terrace level (Refer clause 4.2.1 & 4.1.2, Part 4 of National Building Code of India.)

(3) Additional 1.50 meters (minimum) width Internal Staircase(s) where aggregate exit width requirement is deficient based on, (i) Clauses 4.3, 4.4.2 and 4.6 (Tables 20 & 21) of Part 4, NBC (For every 50 Cms. Of exit stair width, the number of occupants allowed is 25 in case of A, B, C & J category of buildings, 40 in case of D category and 50 in case of E, F, G & H category of buildings/occupancies, respectively) and (ii) Travel distance should not exceed 30/ 45 Meters (Refer Clause 4.5 (Table 22) of Part 4, National Building Code of India) to facilitate means of escape.

(4) In case the above is impossible in existing Premises, suitably enhanced horizontal exits shall be provided preferably through Fire doors leading to adjacent Fire compartment, which in any case, are required if floor area exceeds 500 M² / 750 M² in case of Mercantile/other occupancies (refer NBC Part 4 C 1.8, & C.9).

(5) Emergency Lighting with Battery Backup of minimum 4 hours in corridors/common passages and staircases shall be provided to facilitate means of escape

(6) Generator for reliable alternate source of electric supply.

(7) Public Address System with Battery backup.

(8) Manually operated Fire Alarm System

(9) Ventilation shall be provided at every landing of the External staircase in all floors for venting smoke to facilitate means of escape

(10) Corridors and staircases shall be kept free from obstructions like goods, merchandise, etc., to facilitate means of escape.

(*11) Fire Doors with two hours fire resistance shall be provided at appropriate places along the escape route and particularly at the entrance to lift lobby and stairwell to prevent spread of fire and smoke (Refer Clause 4.2.9, Part 4 of National Building Code of India).

(*12) Compartmentation if Floor area more than 500 M² / 750 M² as per Annexure C, 1.8 & C.9, Part 4, National Building Code of India to restrict spread of Fire and Smoke by providing Fire resistant walls/doors at appropriate locations.

(13) Smoke management measures in respect of Internal Staircases (protected Escape Routes) for all High Rise Buildings and buildings having mixed occupancy having covered area more than 500 M² area (Refer Clause 4.10, Part 4 of National Building Code of India).

(14) Safeguard against ingress of smoke or fumes from Fires in Transformers, fuel tanks, parked cars, cooking areas, etc., into building or exit paths.

(*15) Provide Fireman Lift for every 1200-M² of Floor area, if the building height exceeds 15 Mtrs., if necessary by suitable modification of existing lift(s).

(16) A swing door shall be provided in all grill type and collapsible door type lifts to avoid smoke getting into the lift.

(IV) First Aid fire fighting equipment

(1) Portable Fire Extinguishers shall be provided as per IS Specification 2190:1992 in all floors. Enhanced requirements may be stipulated, if so required, for ensuring safety by the Fire Service Department.

(V) Fixed Fire fighting Installations

(2) Based on the heights and occupancy prescribed, fixed Fire Fighting Installations shall be provided (Hose Reels, Dry Riser, Wet Riser, Down Comer, Yard Hydrant, Automatic Sprinkler System, Manually operated Electric

Fire Alarm Systems, Automatic Detection and Alarm System, Underground Static Water Storage Tank, Terrace Tank and Fire Pumps as required). (Refer Table 23, Part 4 of National Building Code of India)

Subject to approval of the Fire Service Department, neighbours could have shared installations (for example as in gated community developments, group housing schemes, or as in a series or groups of buildings in a central area, market, colonies, and the like) taking into account the requirements of the largest building being shared.

(VI) Electrical Safety (Clause 3.4.10, Part 4 of NBC)

(1) Electrical wiring and installations shall be certified by an Electrical Engineer once in 5 years for Apartments and once in 2 years for the other occupancies. Fire Safety of batteries system in UPSs to be checked in particular.

(2) In all high rise residential complexes and in non-residential occupancies like mercantile, business, assembly, storage, provide:

- a. fast acting Miniature Circuit Breakers (MCBs) to clear short circuits before they can develop into fires and
- b. external main power switches to enable isolate power and forestall short-circuits and consequent fires, in the premises, when it is not manned.
- c. However Security/Fire alarms and emergency lighting to remain powered through separate low power well protected ancillary circuits.

(1) Air-conditioning shall have fire protection measures like Automatic Dampers, etc. to prevent spreading of smoke and fumes which could otherwise endanger life security. (Refer clause C. 1.17, Part 4 of National Building Code of India)

(2) Transformers shall be protected with 4 hour's rating Fire resistant construction with smoke vent to outside, unless separated from Main Building by 6 Meters distance.

(3) Transformers if provided indoor or in basement, shall be provided with automatic High Pressure Water Spray (Mulsifyre) system.

(4) One Foam Trolley of 22.5 litres capacity at Electrical Transformer as mandatorily required per IS 2190

(5) Prevent Combustible oil used in Transformers or Diesel Engines, Spreading Fire to other areas, by providing soak pits and curbs.

(6) Transformer shall have access for fire fighting from minimum three sides of it, specially if it is located outdoor within six metres of any building. This will enable overcome the serious deficiency in fire safety of the transformers and surroundings which are otherwise difficult and costly to rectify

(VII) LPG/Cooking Gases

(1) L P Gas pipe lines shall be run in separate shafts away from the staircases on external walls.

(2) Adequate ventilation shall be provided for storage of LPG cylinders.

(3) Periodical checking of LPG stoves/pipes/ cylinders by authorized Mechanic of Gas Distributor.

(VIII) Fire Safety Plan and Fire Drills

(1) Fire Safety Plans should be prepared as per Annexure - E, Part - 4 of National Building Code of India.

(2) Occupants shall be made thoroughly conversant with their action in the event of an emergency by displaying fire notices at vantage points-in-broad lettering.

(3) Fire Notices/orders shall be prepared to fulfil the requirements of fire fighting and evacuation in the event of fire and other emergencies.

(4) Fire Drills shall be conducted once in three months for the first two years and subsequently once in six months.

(5) Training of the Security/Teaching/Medical Staff and selected Employees in First Aid Fire Fighting and Evacuation at A. P. Fire Service & Home Guards Training Institute, Vattinagulapally, R. R. District.

(IX) General:

Conversion of occupancy without prior approval shall not be permitted (Refer clause 3.1.12 & 3.1.14, Part 4 of National Building Code of India)

(2) Stilt Floor and Basement shall be used exclusively for parking purpose and permitted utilities only so as to help prevent parking encroachment into access space for Fire Vehicles (Refer clause 3.4.6.1(c) of Part 4 and Clause 12.9 of Part 3, National Building Code of India).

(3) Good House keeping shall be ensured.

(4) Terrace Door shall always be openable from inside, without keys.

(5) Automatic sprinkler system shall be provided in the basement if the area exceeds 200 M² (Refer clause 5.1.7, Part 4 of National Building Code of India)

(6) Occupancy wise requirements and additional precautions shall be provided as per clause 6, Part 4 of National Building Code of India.

(X) Specific Recommendations:

(1) In Industrial occupancies access to internal buildings and vulnerable fire locations to be ensured.

(2) Provide bridges between adjacent buildings with Fire Doors for emergency exit (Refer clause 4.2.1 & 4.12, Part 4 of National Building Code of India).

(3) Provide smoke barriers for every 280 M² Floor area for in patients in Hospitals and ramps for evacuating in patients.

(4) Special smoke management measures shall be provided for Multiplexes, large Shopping Malls if inter floor compartmentation is not feasible (Refer clause 3.4.8, Part 4 of National Building Code of India).

(5) Smoke venting measures shall be provided particularly for Cinemas, D-3 Assembly, Mercantile, Institutional and Industrial

occupancies.

(6) Fire Cracker godowns, etc., should not be allowed in Residential/Mercantile areas.

The Committee recommends that a time period of 6 months may be given for compliance of the above suggested fire safety measures and thereafter strict enforcement action may be taken by the Fire Department upon failure to do so.

Based on the above requirements, the following actions are recommended:

(a)

The Fire Service Department to issue notices to all owners/occupiers of existing Buildings/Complexes covered under Section 13 of A.P. Fire Service Act, 1999 (A.P. Fire Services (Amendment) Act, 2006) for complying with the above mentioned fire safety requirements;

(b)

The Municipal Corporation / HUDA to issue notices to all owners/ occupiers of existing Non-Multistoried Buildings/Complexes other than covered under Section 13 of A.P. Fire Service Act, 1999 (A.P. Fire Services (Amendment) Act, 2006) for complying with the above mentioned fire safety requirements ;

(c)

After the above retrofitting of the fire safety installations is complied with in the given time, the Fire Service Department will inspect the buildings/complexes and issue NOC based on the above requirements and drop prosecution as suggested above;

(d)

After NOC is issued by the Fire Service Department the owner/ occupants of such Buildings/Complexes will have to apply for regularization and pay the penalties at the rate of Rs. 100 per sq ft of 'violated built up area in respect of commercial buildings and Rs. 50 per sq ft. of violated built up area in respect of all other buildings failing which, enforcement and coercive measures will be taken up by the local bodies concerned. 10% of this amount shall be utilized by MCH/HUDA/other Municipal Corporations for improvement of fire infrastructure and modern fire equipment in their respective areas.

In addition to this, penal interest in respect of Fire Protection Fees may be levied at the rate of 24% per annum from the date of construction and till such time NOC is obtained from the Fire Service Department.

(B)

Measures Recommended For Statutory Violations And Strengthening Enforcement:

(1)

Prosecution of owners/ occupiers of Multi Stored Buildings who have failed to provide required Fire Safety Measures as per the provisions of National Building Code of India under Section-31 of A.P Fire Services Act, 1999 and under Section 456 of the Hyderabad Municipal Corporation Act, 1955.

(2)

Punitive action by the Municipal Authorities against the Non-Multistoried buildings under the Section 456 of the Hyderabad Municipal Corporation Act, 1955. .

(3)

Black Listing of the builders/firms/architects/ Structural Engineers of Multi Stored Buildings/Non-Multi Storied Buildings who have failed to provide required Fire Safety Measures making them responsible for the unauthorized constructions and fire safety violations.

(4)

Amendment to A.P. Fire Services Act, 1999 making a provision for sealing the building on the lines of Section 5 of the Delhi Prevention and Fire Safety Act, 1986.

(5)

Amendment to A.P. Fire Services Act, 1999 to enhance the punishment for violation of Fire Safety measures as the existing provision is only conviction for three months and incorporating Provisions for making violations of Section 31 of A. P. Fire Service Act, as cognizable offence.

(6)

Constitution of Special Courts to deal with the violation of A.P. Fire Service Act, 1999.

(7)

Providing necessary legally trained staff by creating legal cell headed by a Senior Public Prosecutor in Fire Services

Department to deal with the Fire Safety Violations and pursue the cases before the Courts.

(8)

The Fire Tax i.e., one percent as surcharge on the property tax referred to in Section 36 of A.P. Fire Service Act, 1999 and Rule 35 (c) of A.P. Fire and Emergency Operations and Levy of Fee Rules, 2006 be implemented at earliest and it should be utilized for strengthening of A.P. Fire and Emergency Services Department.

(9)

Creation of Fire Prevention wing with the Officers and personnel to be filled on deputation from Andhra Pradesh Fire Service Department on a fixed tenure basis in the local Bodies to scrutinize the plans of All buildings other than those covered under Section 13 of A.P. Fire Service Act, 1999, and to conduct inspections and periodic safety audit of hazardous premises to ensure fire safety compliant to the National Building Code of India, 2005

(10)

Amendment of the AP Fire Service Act, 1999 restricting the issue of Final NOC unless the building is constructed in accordance with the provisions of National Building Code of India and make the officers liable for punishment, if their negligence results in issuing of improper Final No Objection Certificate and also providing in the relevant CCA Rules that punishment can be imposed without further inquiry basing on the inquiry on the said occupancy certificate.

(11)

Amendment of Municipal laws making a provision for sealing the building and also make a provision in the Municipal laws prohibiting registration without Occupancy Certificate from Municipal Authorities in respect of transfers of any dwelling/commercial building.

(12)

Constitution of Special Courts to deal with the offences against the Hyderabad Municipal Corporations Act, 1955 and in the AP Urban Areas (Development) Act, 1975 in the Municipal Corporations and Urban Development Authorities areas where there are more violations.

(13)

Providing necessary legally trained staff by creating legal cells headed by a Senior Public Prosecutor in Municipal Corporation to deal with the unauthorized constructions and pursue the cases before the Courts on authorized constructions.

(14)

Amendment of the Building Rules restricting the issue of occupancy certificate unless the building is constructed in accordance with the approved plan and make the officers liable for punishment, if their negligence results in issuing of improper occupancy certificate and also providing in the relevant CCA Rules that punishment can be imposed without further inquiry basing on the inquiry on the said occupancy certificate.

(15)

Amendment to the Act and rules of A.P. TRANSCO and HMWS&SB making provision that no electricity and water connections be given unless a occupancy certificate issued by the Municipal Authorities is produced by the person, who require such connection.

(16)

Suitable Amendment in the Building Rules to cover Fire safety violations and procedure for 'blacklisting the builders/firms/architects/ Structural Engineers and other technical personnel making them responsible for the unauthorized constructions and fire safety violations.

(17)

Constitution of High Powered Multi disciplinary committee to:

(a)

review the fire control measures taken in public places like shopping malls, cinema theatres, hotels, etc.

(b)

review the habitual defaulting Builders/Architect/Structural Engineers and other technical personnel recommending their black listing.

(18)

Comprehensive review of GO Ms No. 483 MA dated 24-8-1998 with regard to high rise buildings.

(19)

Making NOC from DG, Fire Services mandatory for providing all public utilities/amenities like water, power connections

in respect of high-rise buildings and commercial complexes of height above 15 m.

(20)

Amend the AP Fire Service Act, 1999 to include in the definition of "fire unsafe buildings " provisions for taking action against such "fire unsafe buildings".

(21)

Implementation of Government instructions issued vide Government Memo.No.10904/A1/2005-1, Municipal Administration, Dated 23-5-2005 by the Commissioners and Special Officers of all the Municipalities and Corporations in the State to make necessary arrangements for augmenting Water Supply for Fire Fighting purposes by repairing Static Water Tanks, Fire Hydrants and providing additional hydrants at all the required places.

It is suggested that 10% of the penal amount collected by MCH/ Other Municipal Corporations/Municipalities/HUDA shall be kept in a separate account and utilized for augmenting the water supply for fire fighting needs in the respective areas.

(22)

Security agencies shall be instructed to train their personnel in fire fighting and maintenance of fire equipment at A.P.Fire Services & Home Guards Training Institute, Vattinagulapalli Ranga Reddy District . This will ensure that the equipment is effectively available when there is an incident of fire. It will also help ensure that first aid fire fighting is in progress and preliminary steps have been taken to facilitate the local fire staff arriving at the site.

(23)

It is suggested that 10% of the penalization amount collected from the Building Penalization Scheme excluding the Building Permit fee and other charges should be earmarked for equipping and augmenting the Fire Service Department.

(C)

Motivation And Modalities For Implementation Of Suggested Remedial Measures:

(a)

It is suggested that in case of non-residential or commercial occupancies, since the cost of rectifying the deficiencies in fire safety measures cannot be grudged, as they are revenue earning and safety of large public is involved hence the builder should pay and provide for it.

(b)

However, in case of Residential Occupancies i.e Apartment buildings any of the following suggested methods may be adopted for provision of suggested remedial measures:

1. BOOT concept :- A reputed vendor be identified to install the required safety measures as per the recommendations of High Power Committee on 'Build Own Operate and Transfer basis ' who will collect rent/charges from the occupants, as recommended by the Committee consisting of Local bodies and Fire Officials constituted by the Government.
2. Public Private Participation (PPP concept) :- (a) Municipal Authorities in consultation with fire services, identify suitable contractors, finalize rate contract, for various fire safety items by constituting appropriate committees from concerned departments by the Government.

(b)

Occupants/Fire Services have to certify execution of works to enable contractor to claim reimbursement from the Municipal Authorities, etc., The latter may recoup the cost from occupants by way of surcharge on property tax or it may consider it to be a concession on property tax, given as a incentive to contributing to fire safety.

3. Implement a package of 'incentives and disincentives' for occupants complying or not complying with the fire safety stipulations. The overall cost of incentives availed by a given occupant, can be limited, if so desired.

2. Additional Fire Safety measures for existing High - Rise Buildings having deficiency in setbacks

[Memo No. 4011/M1/2008 Municipal Administration And Urban Development (MI) Department Dated: 19-05-2008]

Sub :- Municipal Administration and Urban Development (M1) Department - Additional Fire Safety measures for existing High - Rise Buildings having deficiency in setbacks - Reg.

Ref :- 1. G.O. Ms. No. 45 MA&UD Department Dated 04-02-2006

2. G.O. Ms. No. 154 MA&UD Department Dated 13-03-2007

3. G.O. Ms. No. 246 MA&UD Department Dated 1.9-03-2008

4. From the D.G Fire and Emergency Services Lr. Rc. No. 1428/E2/2006 Dated: 13-05-2008.

In continuation of the orders issued in the references 2nd and 3rd cited, regarding the Fire Safety measures to be provided in the existing buildings, the DG Fire and Emergency Services in the reference last cited has suggested certain further additional fire safety measures for existing High Rise Buildings.

The issue was further discussed by the Principal Secretary to Government, Home Department with the Principal Secretary to Government, M.A&U.D.Department, Director, Fire and Emergency Services, Officer on Special Duty, M.A&U.D.Department, and a reputed practising structural engineer as it was felt that the additional fire safety requirements should be rational and implementable taking into consideration the structural safety of such existing multi-storied buildings.

After careful consideration of the proposal of the Director General of Fire and Emergency Services, the Government hereby issue the additional fire safety measures for existing high rise buildings having deficiencies in setbacks, as given in the annexure to this Memo.

Annexure

(Memo No. 4011/M1/2008 .Dated: 19 - 05 - 2008.)

Additional Fire Safety measures required to be complied in respect of existing Multi-storied Buildings where the mandatory open spaces are deficient, which shall be over and above the requirements given in GO. Ms. No. 154 M.A. & U.D. (M1) Department dated: 13-3-2007:

(A)

Residential apartment buildings : (height below 24 meters)

(B)

Residential apartment buildings : (height above 24 meters)

(C)

Commercial/Business/Assembly/Hotel & Educational buildings deficient in 6 meters. open spaces on one side and on abutting road side.

(D)

Commercial/Business/Assembly/Hotel & Educational buildings deficient in 6 meters. open spaces on three sides and on abutting road side.

(A)

Additional Fire Safety Measures Required For Residential Apartment Buildings (A 4) : (Height Above 18 meters and up to 24 meters.)

(i)

The available open spaces all round the building should be made obstruction-free to facilitate movement of fire fighting personnel and equipment.

(ii)

Each floor or for every built up area of 500 sq m minimum (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. and (b) One Water type 9 liters Fire Extinguisher should be provided

(iii)

The building should have an additional static water supply storage of not less than 10,000 liters either in the Underground/Overhead tank and any deficit shall be made good and provided.

(iv)

Yard Hydrant system should be provided on all sides of the building.

(v)

Four way Fire Brigade Inlet.

(vi)

A pump of minimum 5 HP capacity should be provided and connected to the fire fighting system.

(B)

Additional Fire Safety Measures Required For Residential Apartment Buildings (A4) : (Height above 24 meters.)

(i)

The available open spaces all round the building should be made obstruction-free to facilitate movement of fire fighting personnel and equipment.

(ii)

Each floor or for every built up area of 500 sq m minimum (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. 3 and (b) One Water type 9 liters Fire Extinguisher should be provided

(iii)

The building should have an additional static water supply storage of not less than 15,000 liters either in the

Underground/Overhead tank and any deficit shall be made good and provided.

(iv)

Automatic Detection and Alarm system should be provided on each floor higher than 24 meters.

(v)

Manual alarm system shall be provided on all floors

(vi)

Yard Hydrant system should be provided on all sides of the building with two numbers fixed monitors on the side where open space is deficient.

(vii)

Automatic sprinkler system should be provided on each floor higher than 24 meters.

(viii)

Compartmentation should be done by providing Fire doors @ one balcony per apartment on the deficient side/s.

(ix)

One Diesel Pump of 1620 LPM capacity and one Jockey pump of 180 LPM capacity should be provided.

(C)

Additional Fire Safety Measures Required For Commercial/Business/Assembly/Hotel and Educational Buildings Deficient in 6 Mts. Open Spaces on One Side and on Abutting Road Side:

(i)

The available open spaces all round the building should be made obstruction-free to facilitate movement of fire fighting personnel and equipment.

(ii.) Each floor or for every built up area of 500 sq m minimum (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. and (b) One Water type 9 liters Fire Extinguisher should be provided.

(iii)

The building should have additional static water supply storage of not less than 15,000 liters either in the Underground/Overhead tank and any deficit shall be made good and provided.

(iv)

Additional external staircase of R.C.O or M.S. of 1.25 meters. Width, from ground floor to terrace connecting all floors through a fire door and accessible from all parts of the floor on the side where there is deficiency (other than abutting road side).

Note: In cases, where it is not possible, the staircase from terrace to ground floor (roof exit) shall be provided in a strategic place in consultation with Fire and Emergency Services Department to ensure safe evacuation of inmates.

(v)

Wet-riser cum downcomer with landing valve, 2 Nos. Delivery Hoses and One Hose reel shall be provided on all floors on the additional staircase.

(vi)

Water shower curtain to overcome exposure hazard to neighbouring property covering entire side and all floors shall be provided on the side where there is deficiency in open space.

(vii)

Automatic Sprinkler system should be provided in the entire building.

(viii)

Each Shop/Room should be provided with (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. and one Water type 9 liters Fire Extinguisher.

(ix)

Automatic Detection and Alarm system should be provided on each floor higher than 24 meters.

(x)

Manual alarm system shall be provided on all floors.

(xi)

Yard Hydrant system should be provided on all sides of the building with two numbers fixed monitors on the side where open space is deficient.

(xii)

Compartmentation should be done by providing Fire doors @ one balcony per establishment on the deficient side/s.

(xiii)

One Diesel Pump of 2850 LPM capacity and one pump of 180 LPM capacity should be provided.

(xiv)

For Hotels, Malls, Multiplexes and Institutional (Hospital) occupancies where there is considerable life risk due to presence of large number of occupants/public the following shall be provided:

(a)

A qualified Fire Officer with experience of not less than 3 years should be appointed as a caretaker for the entire premises. He should be entrusted with the responsibility of maintaining the systems suggested above, to layout fire orders and Fire & Emergency Services. If not available, a person may be appointed and training will be imparted by the Fire and Emergency Services Department.

(b)

A Fire Command Station should be established in the lobby of building on the entrance floor and such command station be adequately illuminated.

(c)

The main control of the public address system, and fire alarm system should be at Fire Command station.

(d)

A Fire Safety Director/ Building Evacuation Supervisor should be nominated for the building. He should nominate a Fire Warden for each floor of the Building, who will initiate action as deemed fit to ensure fire safety in public interest.

(e)

Trained fire fighting crew round the clock with at least minimum 2 Nos. of 9 liters Mist equipment. The required training will be imparted by the A.P. Fire and Emergency Services Department.

(D)

Additional Fire Safety Measures Required For Commercial /Business Assembly /Hotel and Educational Buildings Deficient in 6 Mts. Open Spaces on Three Sides and on Abutting Road Side:

(i)

The available open spaces all round the building should be made obstruction-free to facilitate movement of fire fighting personnel and equipment.

(ii)

Each floor or for every built up area of 500 sq m minimum (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. and (b) One Water type 9 liters Fire Extinguisher should be provided

(iii)

The building should have an additional static water supply storage of not less than 25,000 liters either in the Underground/Overhead tank and any deficit shall be made good and provided.

(iv)

If the built-up area is less than 500 sq. meters, one additional external staircase of R.C.C. or M.S. with 1.25 meters. Width from ground floor to terrace connecting all floors through a fire door and accessible from all parts of the floor shall be provided in a strategic place to ensure safe evacuation of inmates.

(v)

If the built-up area is more than 500 sq. meters, one additional external staircase of R.C.C./M.S. with 1.25 meters. Width from ground floor to terrace connecting all floors through a fire door and accessible from all parts of the floor shall be provided on each side where open space is deficient (other than abutting road) to ensure safe evacuation of inmates.

Note : In cases, where it is not possible, the staircases from terrace to ground floor (roof exit) shall be provided in a strategic places in consultation with Fire and Emergency Services Department to ensure safe evacuation of inmates.

(vi)

Wet-riser cum downcomer with landing valve, 2 Nos. Delivery Hoses and One Hose reel shall be provided on all floors on the additional staircase.

(vii)

Water shower curtain to overcome exposure hazard to neighbouring property covering entire side and all floors shall be provided on the sides where there is deficiency in open space.

(viii)

Automatic Sprinkler system should be provided in the entire building.

(ix)

Each Shop/Room should be provided with (a) One 2 Kg. Dry Chemical Powder or one Carbon-Di-Oxide 2 Kgs. and one Water type 9 liters Fire Extinguisher.

(x)

Automatic Detection and Alarm system should be provided in the entire building.

(xi)

Yard Hydrant system should be provided on all sides of the building with two numbers fixed monitors on the side where open space is deficient.

(xi)

Compartmentation should be done by providing Fire doors @ one balcony per establishment on the deficient side/s.

(xiii)

Two Electric and One Diesel Pump of 2850 LPM capacity and one Jockey pump of 180 LPM capacity should be provided.

(xiv)

Conversion of the occupancy from high hazard to low hazard especially in higher floors wherever feasible.

(xv)

Provision of fire proofing on the side having deficiency in open space and also on the neighbouring building where there is exposure hazard.

(xvi)

Procuring suitable portable monitors for conducting fire fighting from the periphery or adjacent buildings.

(xvii)

For Hotels, Malls, Multiplexes and Institutional (Hospital) occupancies where there is considerable life risk due to presence of large number of occupants/public the following shall be provided:

(a)

A qualified Fire Officer with experience of not less than 3 years should be appointed as a caretaker for the entire premises. He should be entrusted with the responsibility of maintaining the systems suggested above, to layout fire orders and Fire & Emergency Services. If not available, a person may be appointed and training will be imparted by the Fire and Emergency Services Department.

(b)

A Fire Command Station should be established in the lobby of building on the entrance floor and such command station be adequately illuminated.

(c)

The main control of the public address system, and fire alarm system should be at Fire Command station.

(d)

A Fire Safety Director/ Building Evacuation Supervisor should be nominated for the building. He should nominate a Fire Warden for each floor of the Building, who will initiate action as deemed fit to ensure fire safety in public interest.

(e)

Trained fire fighting crew round the clock with minimum 1 No. of 9 liters Mist equipment per floor. The required training will be imparted by the A.P. Fire and Emergency Services Department.

(f)

Water Tender Type 'IV or 600 liters Mist equipment mounted on Trolley.

3. Creation of Fire Prevention Wing in five (5) Municipal Corporations in the State and creation of twenty (20) supernumerary posts to be filled on deputation from A.P. Fire & Emergency Services Department - Further Orders - Issued.

[GO.Ms.No. 174 Municipal Administration & Urban Development (M1) Department Dated: 24.02.2009]

Read:

G.O.Ms.No.61 Finance (SMPC) Department ., dated 21.02.2009.

Order:

In the GO read above, the Finance (SMPC) Department have issued orders and accorded sanction for Creation of (20) supernumerary post in five (5) Municipal Corporations i.e. (i) Greater Hyderabad Municipal Corporation (ii) Greater Visakhapatnam Municipal Corporation, (iii) Vijayawada Municipal Corporation, (iv) Tirupati Municipal Corporation and (v)

Warangal Municipal Corporation of Fire Prevention Wing and these posts shall be filled up on deputation from Fire & Emergency Services Department for a period of one year in the five (5) said Corporations and the total recurring expenditure towards salaries has to be met from the borne funds of respective five (5) Municipal Corporations without any financial commitment by the Government at present or in future.

2. Pursuant to the above orders of Finance (SMPC) Department, the Commissioner & Special Officer, GHMC Hyderabad and other Commissioners of Greater Visakhapatnam Municipal Corporation, Vijayawada Municipal Corporation, Tirupati Municipal Corporation & Warangal Municipal Corporation are requested to implement the above orders and to take necessary further steps for creation of Fire prevention wing in the respective Corporations to scrutinize the plans of all non-High rise buildings which require No Objection Certificate (NOC) under Section 13 of A.P. Fire Service Act, 1999 and to conduct inspections and periodic safety audit of hazardous premises to ensure fire safety compliance to the National Building Code of India, 2005 in the said Local bodies and the Fire Prevention Wing shall work under the administrative control of respective Municipal Corporations and as per the works & duties as assigned from time to time by the respective corporations and the D.G. Fire Services shall delegate powers for disposal at the level of respective corporations.

3. The Commissioner & Special Officer, Greater Hyderabad Municipal Corporation, Hyderabad and other Commissioners of Greater Visakhapatnam Municipal Corporation, Vijayawada Municipal Corporation, Tirupati Municipal Corporation & Warangal Municipal Corporation are requested to provide necessary infrastructure for effective functioning of Fire Prevention Wings in the said five (5) Corporations.

4. The Director General of Fire & Emergency Services, A.P. Hyderabad is requested to take necessary further action in the matter.

4. Buildings constructed without obtaining NOC from the Fire Service Department and in violation of statutory provisions -High Power Committee constituted - Certain amendment

[GO.Ms.No.244, Municipal Administration & Urban Development (M1) Department, dated: 07.03.2009]

Read the following:

1. G.O.Ms.No.45 MA&UD (M1) Department , Dated 04.02.2008

2. From the Director General Fire & Emergency Services Department, A.P. Hyderabad, Lr.No.2444/S2/2008, Dated 01.12.2008.

3. From Home (Prisons A2) Department, U.O.No.13734/Pri.A2 / 2008 Dated 21.02.2009.

4. From Health Medical & Family Welfare Department, U.O.No.1232/ M2/2009-1, Dated 10.02.2009.

Order:

In the reference 1st read above, orders were issued and constituted High Power Committee consisting of (9) members in pursuant to the Hon'ble High Court orders dated 24.01.2006 in W.P.No.26365 of 2005 to go into all aspects of buildings constructed (Multistoried or otherwise) without obtaining NOC from Fire Service Department in violation of statutory provisions and to make comprehensive suggestions for taking remedial steps for Fire Protection and Safety Measures in all such buildings.

2. The Director General of Fire & Emergency Services Department, A.P. Hyderabad, Home (Prisons.A2) Department and Health Medical & Family Welfare (M2) Departments in their proposals vide reference 2nd to 4th read above has requested the Government to reconstitute the High Power Committee constituted vide GO. 1st read above and to include the Principal Secretary to Government, HM&FW Department and Sri B Bhaskar Rao, Director, Krishna Institute of Medical Sciences, Hyderabad (KIMS) and co-opt as members in the said High Power Committee for consideration and recommendations of High Rise Buildings of above 30 meters and up to 50 meters height and to ensure Fire Prevention and Safety Measures in High Rise Hospital Buildings more than 30 meters height.

3. Government after careful examination of the matter and the recommendations made by the Director General of Fire & Emergency Services Department, A.P. Hyderabad, Home (Prisons.A2) Department and Health Medical & Family Welfare (M2) Department vide reference 2nd to 4th read above, hereby issue the following amendment to G.O.Ms.No.45 MA&UD (M1) Department ., Dated 04.02.2006 and to include and co-opt the following two (2) members as members in the High Power Committee in addition to the existing nine (9) members to make comprehensive suggestions, if any, detailed by the High Power Committee from time to time.

Amendment

After Sl.No.9 in the GO.Ms.No.45 MA&UD (M1) Department Dated 04.02.2006 the following members shall be added with immediate effect namely:

10

Principal Secretary to Government, Health, Medical &
Family Welfare Department

Member

11

Sri B. Bhaskar Rao, Director, Krishna Institute of Medical
Sciences, Hyderabad (KIMS)

Member.

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Translation